



FLIP THROUGH BEFORE YOU DOWNLOAD

What You Can Borrow

Three real pages, straight off the shipping files,
plus everything the full download includes.



Three things the Copyright Office actually says

1 • Rules and systems are not protected. Expression is.

Copyright does not protect "ideas, methods, systems, procedures, processes, concepts, principles, discoveries, or devices" — and game rules and mechanics sit inside that list. That is Circular 33, *Works Not Protected by Copyright*.

So the *mechanic* is open. A rulebook's actual sentences, the board art, the character designs and the music are **expression**, and those are protected. **This one distinction settles most of what a teacher wants to know.**

2 • Names and short phrases are not copyrighted — but they may be trademarks

The Copyright Office is blunt: "Copyright does not protect names, titles, slogans, or short phrases." It then adds the part people miss: "In some cases, these things may be protected as trademarks."

That is a different law, and it is the one that actually catches teachers. Putting a famous character's name or a logo on your game is a trademark problem even though the name itself carries no copyright. **Use your own names** and the question never arises.

3 • "It is for school" is not a free pass

Fair use is real and education helps, but the Copyright Office says courts "evaluate fair use claims on a case-by-case basis" and that "there is no formula to ensure that a predetermined percentage or amount of a work — or specific number of words, lines, pages, copies — may be used without permission."

And directly: courts are more likely to find nonprofit educational use fair, "This does not mean, however, that all nonprofit education and noncommercial uses are fair." There is no ten-percent rule and there never was.

SNEAK PEEK • 5 pages

Why this is good news rather than bad.

The thing you actually want — a game that *plays* like the one they love — is the part that was never protected. **You do not need permission to build a game where answering right opens a locked door.** You need your own words and your own pictures on top of it.

Free to borrow, and never

Take it – this is the system	Leave it – this is somebody's expression
Turn-based battles where each side acts in order	Their creatures, their names, their cries, their designs
Collecting things and building a team from them	The actual roster, the types, the type chart as written
Locked doors that open with a code you earn	Their room art, their puzzle text, their voice lines
A health bar, lives, a timer, a streak counter	Their interface, their fonts, their sound effects
Leveling up, experience points, unlocking	Their exact numbers copied out of a wiki
A map you travel across with choices at forks	Their map, their place names, their music
"It plays a bit like that game" as a description	Their title or logo anywhere on your thing

The two-second test

Could you describe it to a colleague in two seconds? Naming the original? "Students collect creatures and battle with them" is a system and it is yours. "Students collect the yellow electric one" is somebody's character, and it is not.

The three places teachers get caught, every time

Images pulled from a search. The single most common one. A picture on the internet is not free because it is on the internet.

Fonts and sound effects. Licensed like anything else, and the license usually says what you may do with them.

The title. A clever play on a famous game's name puts the famous name on your cover, which is the trademark question from page 2.

SNEAK PEEK · 5 pages

Seven checks, about four minutes

Run these on anything you are about to put in front of a class, hand to a colleague, or put on a school server. Any "no" is a thing to change, not a reason to stop.

1 Is every name in it mine?

Characters, places, items, the title. Search the file for the original's names and confirm zero hits. **This one check catches most of it.**

2 Did every picture come from somewhere I can name?

Drawn by me, made by the program, or from a source whose license I could point at. "Found it" is not a source.

3 Is every sentence in it written by me or by my class?

Not pasted from a wiki, a manual or another teacher's resource. Questions and answers included.

4 Would somebody think this IS the original?

Not "is it similar" — similar is fine. Would a person believe it came from that company? **If yes, change the look until they would not.**

5 Is there a logo anywhere?

Including in a screenshot, a background, or a font that is somebody's brand. Logos are the clearest trademark problem there is.

6 Am I giving it away for free?

Your own classroom is the easiest case. A shared drive is wider. A sale is a different question entirely and this page does not answer it.

7 Can I say in one sentence what is mine?

"The mechanic is a common one, and the words, pictures and code are mine." If you cannot say that, go back to check 1.

Keep the answers. Three lines in a file beside the game — where the pictures came from, who wrote the text, what the names are. **Five minutes now beats trying to remember in April** when somebody asks whether it can go on the school website.

SNEAK PEEK · 5 pages



WHAT IS INSIDE

What You Can Borrow

- ✓ **The one line** that decides almost every case
- ✓ Three things the Copyright Office actually says, quoted
- ✓ **Two columns**: free to borrow, and never
- ✓ **Seven checks** to run before you share it
- ✓ What to do when AI hands you protected material
- ✓ A fill-in page so your own game is documented

Running it with your whole staff? Additional teacher licenses are just \$0, and we accept purchase orders through TpT for Schools.

